

Chaney, Romero, Margaret W., and J.L. to be more analogous to the circumstances of this case involving a foster home, than the circumstances involving youth sports at issue in the *Youth Soccer* case.

Moreover, *Doe v. Los Angeles County Department of Children & Family Services* (2019) 37 Cal.App.5th 675, makes clear actual knowledge is the appropriate standard in the foster home context. (*Id.* at pp. 682-683.)

Here, Plaintiff asserts Defendants were first made aware of allegations of sexual abuse by Plaintiff's foster parent in 1971, when Plaintiff's foster brother, R.S., told his social worker (who was different than Plaintiff's social worker), "I feel really weird taking a shower with dad" and "it was yucky." (Response to Separate Statement, Fact Nos. 10, 22, 23, 27.) The ruling in the related case of *R.S. v. OCSSA, et. al.*, Orange County Superior Court 30-2021-01183062, however, noted that statement alone was not sufficient to create or establish actual knowledge that would make the harm foreseeable. The court takes judicial notice of its April 11, 2023 Minute Order granting summary judgment in the related *R.S.* matter. Plaintiff also asserts he "repeatedly reported" to his social work "Bad people are hurting me." (Response to Separate Statement, Fact Nos. 10, 22, 23, 27.) Plaintiff relies on his deposition, in which he was questioned about his Interrogatory response. Plaintiff was asked "Did you say anything else other than "Bad people are hurting me?" to which Plaintiff answered "I'm going to pretty much stick with those words. When I first told her, I was young." (Plaintiff's Deposition 121:22-25.) Finally, Plaintiff asserts his social worker was aware of his bedwetting, and that it is a common issue in children who have experienced sexual trauma, citing to the deposition of his social worker. (See Response to Separate Statement, Fact No. 14.) The deposition of Plaintiff's social worker indicates she was aware of the bedwetting, and it is "a pretty common issue for children who've experience trauma." (Deposition at 39: 20-25.) Further, Plaintiff's social worker testified she did not "consider it as a red flag based on the whole context of" Plaintiff's history. (Deposition at 43: 8-10.)

This presents the question whether these facts together constitute actual knowledge that would make conduct of Plaintiff's foster parent foreseeable. Ultimately, they do not. Plaintiff's foster brother made a single statement the year before Plaintiff was placed in the home to a different social worker. Plaintiff has offered only a vague assertion he told his social worker "Bad people are hurting me." There is no evidence Plaintiff ever elaborated or indicated the "bad people" were in his foster home. Undisputed Material Fact No. 16 states Plaintiff told his social worker "several times that he wanted to stay in [his foster parents'] home, wanted to be adopted by [his foster parents], and that [his foster family] felt like his real family."

The court acknowledges the declarations and evidence offered in opposition to the motion must be liberally construed and the moving party's evidence must be construed strictly when determining the existence of a trial issue of fact. (*Johnson v. American Standard, Inc.* (2008) 43 Cal.4th 56, 64.) Similarly, the court acknowledges it may not weigh the evidence in ruling on a summary judgment motion (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 840), nor may it resolve questions of credibility (*AARTS Productions, Inc. v. Crocker National Bank* (1986) 179 Cal.App.3d 1061, 1064). We these standards in mind, the court nonetheless concludes the foregoing facts do not support actual knowledge that would make the conduct of Plaintiff's foster parent foreseeable. As such, Defendants had no legal duty to protect Plaintiff from the unforeseeable criminal conduct of his foster father.

Defendants also assert immunity under Government Code § 820.2, arguing that social workers are immune from claims arising from their placement of minors in foster care and decisions regarding whether a minor should remain or be removed from that placement because those are discretionary decisions judicially delegated to social workers. (See *Becerra v County of Santa Cruz* (1998) 68 Cal.App.4th 1450, 1462; *County of Los Angeles v. Superior Court (Terrell R.)* (2002) 102 Cal.App.4th 627, 643-44; *Thompson v. County of Alameda* (1980) 27 Cal.3d 741, 748-49; *Ronald S. v. County of San Diego* (1993) 16 Cal.App.4th

		887, 899; <i>Alicia T. v. County of Los Angeles</i> (1990) 222 Cal.App.3d. 869, 882-83.) Plaintiff points to <i>Elton v. County of Orange</i> (1970) 3 Cal.App.3d 1053, which held "Decisions made with respect to the maintenance, care or supervision of plaintiff, as a dependent child, or in connection with her placement in a particular home . . . do not, under the provisions of Government Code section 820.2, preclude judicial inquiry into whether negligence of public employees was involved." <i>Elton</i>, however, has been criticized as a "difficult decision" by the same court of appeal that decided it (<i>Ronald S., supra</i>, 16 Cal.App.4th at p. 898) and found distinguishable on many grounds (<i>ibid.</i>; <i>Becerra, supra</i>, 68 Cal.App.4th at p. 1464). The court agrees with the other cases. Moreover, this immunity challenge provides an additional ground for granting the motion, the other grounds discussed above are sufficient in and of themselves to support granting the motion. Based on the foregoing, the motion for summary judgment is GRANTED. Counsel for Defendants is ordered to give notice.
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